

IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

Writ Petition No.1549/2015

Nadeem Tariq

Versus

Full Board, Board of Revenue (Member Judl-V & VIII), Punjab, Lahore
etc.

JUDGMENT

DATE OF HEARING:	22.01.2015.
PETITIONER BY:	Mr. Qayyum Javed Khan, Advocate.
RESPONDENTS BY:	Ms. Asma Hamid, A.A.G.

CH. MUHAMMAD IQBAL, J:- Through this Writ Petition, the petitioner challenged the Order dated 23.10.2014 passed by the Full Board, Board of Revenue, Punjab whereby the Members (Judicial-V & VIII), Board of Revenue, Punjab dismissed the Second Review Petition No.609 of 2011 filed by the predecessor-in-interest of the petitioner namely Maqbool Ahmed and two separate Applications under Order 1 Rule 10 of CPC and under Order 22 Rule 3 & 6 read with Section 151 of CPC filed by the present petitioner.

2. Brief facts of the case as contended by the learned counsel for the petitioner that Tehsildar, Pakpattan submitted a report to

the District Collector, Pakpattan in the year 1999 in which he prayed that one Muhammad Ali who was Lamberdar of Chak No.8/KB, Tehsil & District Pakpattan is a defaulter of Land Revenue amounting to Rs.220,952.99 and on the sole ground, the District Collector, Pakpattan removed from the Office of Lamberdar for being a defaulter of the aforesaid amount. The said Lamberdar against this Order filed an Appeal before the Commissioner who dismissed the same on 05.12.2000 then he filed a Revision Petition against the Order of District Collector, Pakpattan before the Member, Board of Revenue which was dismissed vide Order dated 11.10.2004. On dismissal Order, the District Collector Pakpattan, vide his Order dated 08.05.2008 allowed to prepare a new file for fresh appointment of Lamberdar, 55 landowners applied for the appointment of Lamberdar, out of which 27 candidates withdrew their candidatures in favour of Maqbool Ahmed, the deceased father of the present petitioner. The District Collector appointed respondent No.5 namely Zafar Ali as a Lamberdar on 21.10.2008. An appeal was filed by the father of the petitioner namely Maqbool Ahmed before respondent No.4/DO (R) which was dismissed on 25.03.2010. Thereafter, he filed Revision Petition before respondent No.2 which was also dismissed on 24.12.2010. A Review Petition against the said Order filed by the father of petitioner was also dismissed on 06.09.2011. A Second

Review Petition before the Full Board of Board of Revenue was filed on 16.09.2011 which was remained pending and during the pendency of the matter, father of petitioner namely Maqbool Ahmed died. The present petitioner being son of the deceased father who died during the pendency of 2nd Review Petition filed an application on 02.11.2011 under Order 1 Rule 10 of CPC for impleading the applicant as petitioner. Thereafter, the present petitioner filed an application under Order 22 Rules 3 & 6 read with Section 151 of CPC for impleading petitioner in place of his deceased father in the Second Review Petition. After hearing the Second Review Petition, the Member, Board of Revenue dismissed 2nd Review Petition and the aforesaid Applications of the petitioner on 23.10.2014. Hence this Writ Petition.

3. Learned counsel for the petitioner submits that the petitioner has a vested right to step into the shoe of his deceased father. The impugned Order passed by the Member, Board of Revenue is void, illegal, against the law and facts of this case. The Members, Board of Revenue have not passed a Speaking Order, as such, the impugned Order may kindly be set aside.

4. Learned Law Officer appearing on behalf of the respondents stated that the deceased Lamberdar filed First Review Petition which was dismissed and thereafter Second Review Petition filed by the present petitioner's father which

was also dismissed by the learned Member, Board of Revenue is in accordance with law. In this regard, the learned Law Officer relied upon the cases reported as Ghulam Hussain Vs. Ghulam Muhammad and Others (1976 SCMR 75), M. Nazir Ahmad Vs. Muhammad Aslam and Others (2013 SCMR 363), Haji Muhammad Zaman Khan Vs. Member, Board of Revenue, Punjab and Others (2014 SCMR 164). Learned Law Officer stated that the petitioner has no vested right for the appointment of Lamberdar and also has no cause of action to file titled Writ Petition, as such, instant Writ Petition may be dismissed.

5. I have heard the arguments advanced by the learned counsel for the parties and have perused the record, appended herewith.

6. The permanent Lamberdar has already been appointed, he is working according to the satisfaction of the Revenue Authorities and there is no complaint against him. The learned counsel for the petitioner has not identified any mistake or error apparent on the face of record nor discovered a new and important fact or evidence, which is sine qua non for exercise of review jurisdiction, as such, the impugned Order is a just decision. The petitioner has no vested right to appoint as a Lamberdar. Concurrent findings of facts are against the petitioner which is a just decision. The petitioner cannot be

allowed to re-open the case by filing the Review Petitions which have already been concluded. Learned counsel for the petitioner has not identified any illegality or irregularity in the impugned Order and also has not pointed out any jurisdictional defect. Reliance is placed on the case reported as Ghulam Hussain Vs. Ghulam Muhammad and Others (1976 SCMR 75), which is as under:-

“Appointment rests in discretion of graded hierarchy of Revenue Officer – Case of appointment as Lambardar not to be approached like those of dispute relating to property or franchise – contention the petitioner being nearer consanguine compared to the respondents was “nearest eligible heir” and as such had to the right to be appointed Lambardar in competition with the respondent. The argument in our opinion is misconceived.

Rule 19 (2) (Primogeniture)---On its proper construction far from conferring any right much less a legal right, the rule at best is directory --- it would be wrong to impart greater efficacy to the above rule.”

Another reliance is placed on the case reported as M. Nazir Ahmad Vs. Muhammad Aslam and Others (2013 SCMR 363), which is as under:-

“No person has a vested right to be appointed as Lambardar (also see 1996 SCMR 1581).

High Court was not supposed to sit as a Court of appeal, but only had to examine if there was any jurisdictional error in the orders passed by Revenue hierarchy.”

“It is also not a vested right of a person to be appointed as a Lambardar, rather the revenue authorities, for the purposes of assigning certain responsibilities to a person in the Chak, make a selection as per the criteria set

out in rule 17 of the Land Revenue Rules and to find the most suitable candidate for the job who could capably discharge the duties inter alia in terms of rule 22 of the rules *ibid.*”

“It may be pertinent to mention here, that the learned High Court while considering the cases about the appointment of Lambardar is not supposed to sit as a court of appeal, but only has to examine, if there is any jurisdictional error, in the orders passed by the revenue hierarchy and whether such orders are, patently against the express provisions of law or the law laid down by the superior courts and/or are perverse, arbitrary, capricious, illogical and against the recover. But the order passed in review by the Board in this case does not fall within the above category and, thus, should have not been interfered by the learned High Court.”

Another reliance is also placed on the case reported as

Haji Muhammad Zaman Khan Vs. Member, Board of Revenue,

Punjab and Others (2014 SCMR 164), which is as under:-

“Factors referred to in Rule 17 being guideline must be kept in mind---Totality of virtues, qualification and experience of candidate would weigh in process of such appointment.

17. Petitioner’s learned counsel worked hard and ably argued his case. But the arguments made in substance were an attempt to re-open the entire case which is not tenable in review jurisdiction. In Habib ul Haque @ Ajar V. Umer Gul through L.Rs (2009 SCMR 335), this Court dismissed the review application as it found that:-

“The petitioner cannot be allowed to reopen the case under the umbrella of review petition and his learned counsel cannot be permitted to reargue the case. Reference can be made to Mst. Kabir-un-Nisa and another v. Settlement Commissioner (Lands) Lahore and 3 others 1975 SCMR 493. This Court after taking into consideration every aspect of the case and taking conscious and deliberate decision on points of facts and law dismissed petitioner’s civil petition. Neither there is any mistake or error apparent on the face of record nor discovery of a new and important matter or evidence, which is sine

qua non for exercise of review jurisdiction of this Court. In this behalf reference can be made to Abdul Ghaffar-Abdul Rehman and others v. Asghar Ali and others PLD 1998 SC 363, Mian Rafiq Saigol and another v. Bank of credit and Commerce International (Overseas) Ltd. and another PLD 1997 SC 865, Mst. Kalsoom Malik v. Assistant Commissioner 1996 SCMR 710 and Daewoo Corporation v. Zila Council Jhang 2004 SCMR 1213.”

7. That the First Review Petition filed by the father of the present petitioner was dismissed and under Section 8 of the Board of Revenue Act, 1957, no Second Review is provided.

Section 8 of the Ibid. Act is reproduced as under:-

“8. Review of Orders by the Board. (1) Any person considering himself aggrieved by a decree passed or order made by the Board and who, from the discovery of new and important matters or evidence which after the exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or the Order was made, or on account of some mistake or error apparent on the face of the record [or for other sufficient reason] desires to obtain a review of the decree passed or order made against him, may apply to the **Board for a review of judgment** and the Board may, after giving notice to the parties affected thereby and after hearing them, pass such decree or order as the circumstances of the case require”

8. The Member, Board of Revenue dismissed the First Review Petition of father of the petitioner. The said Order had attained finality, as only one Review is competent before the Board of Revenue, the Second Review Petition is not competent. No provision exists under the law to entertain/allow the Second Review Petition before the Board of Revenue. Reliance is placed on the cases reported as Haq Nawaz Vs. Member (Colonies),

Board of Revenue, Punjab, Lahore (2009 CLC 1247), Ahmed Sher Khan Vs. Senior Member, Board of Revenue, Punjab, Lahore (2009 YLR 1820), Khan Muhammad Vs. Member, Board of Revenue (2006 PLD 615), Allah Wasaya Vs. Member (Colonies), Board of Revenue, Punjab, Lahore (2006 YLR 2084), Khan Muhammad Khan through LRs Vs. Member (Judicial-I), Board of Revenue, Punjab, Lahore (2006 PLD 322), Ghulam Muhammad Vs. Member (Judicial-III), Board of Revenue, Punjab, Lahore (2005 CLC 1512) and Mst. C. Gabriel alias Shamim (Nau Muslim) Vs. Member (Judicial-III), Board of Revenue, Punjab, Lahore (2005 YLR 1430).

9. The father of the present petitioner submitted application for the appointment of Lamberdar but not succeeded. Thereafter, the father of the petitioner assailed the said Order through Appeal, Revision Petition in ROR No.718/2010, First Review Petition which was dismissed and lastly filed a Second Review Petition but during the pendency of Second Review Petition, the father of the petitioner had died. The petitioner filed Applications under Order 1 Rule 10 of CPC and under Order 22 Rule 3 & 6 read with Section of 151 CPC but the said Applications were dismissed by the Member, Board of Revenue on the ground that the petitioner has no vested right to step in the proceedings

which had attained finality. The petitioner is alien and stands nowhere in the proceedings.

10. Further through this Writ Petition, the petitioner challenged the concurrent findings of facts passed by the Revenue Hierarchy which is not required for the interference. Under the law, the matter became past and close transaction after the death of father of petitioner, the present petitioner stands nowhere in this matter. Learned counsel for the petitioner has not identified any illegality or irregularity in the concurrent findings of the Revenue Courts below and also did not show any jurisdictional defect or error. Reliance is placed on the case reported as Ali Muhammad and others Vs. Abdul Hameed and others (2006 SCMR 899).

7. The upshot of the above discussion is that the petitioner has failed to make out a case for interference by this Court, therefore, the Writ Petition is **dismissed** being devoid of any merits.

(CH. MUHAMMAD IQBAL)
JUDGE

MFH (PA)

APPROVED FOR REPORTING

JUDGE